

To: claims@roland-rechtsschutz.de **From:** artiom.kovnatsky@gmail.com **Subject:** Final Reconsideration Request and Formal Notice — Claim No. S-26-01720899 / Policy No. 1.29.1042136

Berlin, 27 May 2026

ROLAND Rechtsschutz-Versicherungs-AG
Postfach 21 09 07
50533 Köln

Claim No.: S-26-01720899 **Policy No.:** 1.29.1042136 **Insured:** Dr. Artiom Kovnatsky,
Dahlmannstr. 17, 10629 Berlin **Re:** Zivilsache Kovnatsky ./ GitHub

Dear ROLAND Claims Team,

I respectfully submit a final, formal reconsideration request following your second rejection dated 26.05.2026. After careful review of both rejection letters, the documentation you received on 22.05.2026 in response to your information request of 21.05.2026, and my insurance certificate, I must draw your attention to internal inconsistencies in the stated reasoning, and to two distinct aspects of the claim that neither rejection letter has substantively addressed.

A consolidated chronology of the matter is provided in **Appendix A** to this letter.

I ask that this letter be treated as a formal request for documented reasoning before any further escalation to the Versicherungsombudsmann e.V.

I. The policy explicitly includes Kleinunternehmer-Rechtsschutz as a named module — and you have received the full documentation required to apply it

My current insurance certificate (Versicherungsschein-Nr. 1.29.1042136), under the section *"Privat-, Berufs- und Verkehrs-Rechtsschutz für alle Privatfahrzeuge (Komfort-Variante) / gemäß ARB-Bausteinen P, B und V1p"*, states verbatim:

"Rechtsschutz für Ihren privaten Lebensbereich sowie Rechtsschutz für selbstständige Nebentätigkeiten (Kleinunternehmer-Rechtsschutz)."

The Kleinunternehmer-Rechtsschutz is a **named, purchased component** of my policy — not an exception, not an extension, and not an inferred coverage. The general exclusion you cite — B.1.1. (*"you are not covered ... if you are acting in a legal capacity in connection with ... a commercial activity, a freelance activity, any other self-employed activity"*) — is the standard exclusion attached to the private module (P). The Kleinunternehmer-Rechtsschutz module exists precisely to re-include the qualifying self-employed secondary activities that B.1.1. would otherwise exclude.

In response to your information request of 21.05.2026, I provided on 22.05.2026 the full and official documentation establishing that I meet every condition of this module:

1. **Mitteilung des Finanzamtes Charlottenburg of 26.06.2019**, assigning Steuernummer 13/394/02367 for *Einkommensteuer, Umsatzsteuer, Gewinnermittlung nach § 4 Abs. 3 EStG*, with the registered activity type:
"Bezeichnung des Betriebes bzw. Art der Tätigkeit: Erbrg.v.Beratldg.f.Inform.gew." (i.e. *Erbringung von Beratungsleistungen für das Informationsgewerbe* — provision of consulting services for the information/IT industry).
2. **Mitteilung des Bundeszentralamtes für Steuern of 27.03.2025**, assigning the Wirtschafts-Identifikationsnummer **DE405667512** pursuant to § 139c AO, formally confirming registered economic activity.
3. The 2025 tax declaration confirming Kleinunternehmer status under § 19 UStG with no employees — exactly the condition your first letter (27.04.2026) named: *"The condition for this is that the requirements of § 19 UStG are met and no employees are engaged."*

As a Freiberufler (free profession), no Gewerbeanmeldung is legally required — this is a statutory distinction under German law. My registered secondary activity has been continuously on record with the Finanzamt since 2019.

Citing B.1.1. against an insured who (a) holds a policy with the named Kleinunternehmer-Rechtsschutz module, (b) was specifically asked by you to confirm Kleinunternehmer status, and (c) has now provided complete federal and state documentation establishing that status — would empty the Kleinunternehmer-Rechtsschutz module of all content. That is not a tenable construction of the contract.

I respectfully request a formal written statement of the specific clause of ARB 2024 that excludes my dispute from the Kleinunternehmer-Rechtsschutz module, citing the clause text in full.

II. The stated reasoning materially changed after the documentation you requested had been received

The chronology is documented in your own correspondence and mine (see also Appendix A):

(1) 27.04.2026 — First rejection. You confirmed the eligibility framework:

"Your insurance contract includes legal protection for self-employed secondary activities. The condition for this is that the requirements of § 19 UStG are met and no employees are engaged."

The rejection rested on a single asserted reason: *"In your case, your GitHub account was blocked. For that reason, your case is not covered."* No analysis was offered as to why a contractual dispute regarding the GitHub Pro/Developer Plan service does not qualify as a contract and property law matter within the three categories you yourselves listed: **Investitionsgütergeschäfte, Nebengeschäfte, Versicherungsverträge.**

(2) 27.04.2026 — My appeal, with the 2025 tax declaration and the documented GitHub admission of error.

(3) **21.05.2026 — Your information request** seeking confirmation of Freiberufler / § 19 UStG status. This request itself presupposes that the Kleinunternehmer-Rechtsschutz framework is potentially applicable — it would not have been a rational request otherwise.

(4) **22.05.2026 — My response**, supplying the Finanzamt classification (IT consulting, registered since 2019) and the Wirtschafts-Identifikationsnummer.

(5) **26.05.2026 — Your second rejection**, introducing an entirely new line of reasoning:

"You claim a Störung des Geschäftsbetriebes and Eingriff in den Gewerbebetrieb. This is why no Nebengeschäfts applies." "According to your own account, it is clear that your main business is affected."

The decisive change in reasoning thus occurred only after I supplied the exact documentation your information request required. These positions are not reconcilable:

- **If** my activity qualifies as the contractually insured Nebentätigkeit — which the documentation you specifically requested confirms — then the remaining question is whether the dispute fits one of the three covered categories. For a person registered with the Finanzamt as providing *"Beratungsleistungen für das Informationsgewerbe"* (IT consulting), a contractual dispute over a developer platform subscription is a textbook example of a **Nebengeschäft**.
- **If**, alternatively, the matter is excluded on the new ground that it concerns "main business," this directly contradicts your first letter (which treated it as Nebentätigkeit) and your information request of 21.05.2026 (which presupposed Nebentätigkeit analysis).

The further argument that *"You claim Störung des Geschäftsbetriebs ... this is why no Nebengeschäfts applies"* is also internally circular. The existence of operational consequences cannot logically determine whether a transaction qualifies as a Nebengeschäft; otherwise, no operationally relevant Nebengeschäft could ever be insured, and the module would be empty by construction.

I respectfully request a clear written statement of which of these two mutually exclusive analyses you finally rest the decision upon.

III. The assertion that "main business is affected" is not supported by the evidence on file, and the burden of demonstrating an exclusion rests with the insurer

Your second rejection states, in conclusory form:

"According to your own account, it is clear that your main business is affected."

No specific statement, document, or measure is cited in support of this conclusion. The documents on file before you are:

1. My initial claim correspondence and appeal of 27.04.2026;
2. The 2025 tax declaration (Hauptvordruck, Anlage N, Anlage S, Anlage EÜR);
3. The Finanzamt classification of 26.06.2019;

4. The Wirtschafts-Identifikationsnummer of 27.03.2025;
5. The GitHub Support correspondence and receipts.

None of these documents supports the construction that my self-employed secondary activity constitutes my "main business." On the contrary, every objective measure recognised by the German tax authority establishes the opposite:

- **Registered occupation (Ausgeübter Beruf), Finanzamt Charlottenburg:** Data Engineer.
- **Income from non-self-employed work (Anlage N), salaried at stenon GmbH:** Bruttoarbeitslohn €73,427.00.
- **Income from self-employed work (Anlage S), Data Science Consultant:** –€4,099.07 (documented loss).
- **Tax classification of the self-employed activity:** Kleinunternehmer under § 19 UStG, no employees.

It appears that the conclusion drawn in your second rejection relies on descriptive language from my appeal of 27.04.2026 — references to "*professional standing*," "*scientific contributions*" (Zenodo/SVE preprints), and "*accumulation of momentum*" — describing the **impact and context** of the dispute. Descriptive language cannot redefine the formal tax and registration status of an activity. Long-term preparatory and infrastructure investments are a normal characteristic of a Nebentätigkeit — indeed, the very tax declaration on your file documents the –€4,099.07 loss precisely as such infrastructure investment for future projects. A side activity that involves substantial intellectual or infrastructure investment remains a Nebentätigkeit; it does not by virtue of that investment become a Hauptberuf.

Under German insurance law the insurer carries the burden of demonstrating that an exclusion applies. To the extent that the term "Nebengeschäft" or the concept of "main business" is construed by ROLAND in a manner that diverges from the documented tax and registration position of the insured, that construction must be supported by specific evidence — and where the policy or ARB terms remain open or ambiguous, § 305c Abs. 2 BGB (Unklarheitenregel) directs that the interpretation favourable to the insured prevails.

I respectfully request, in clear written form:

- (a) the specific statements or documents on file that support the assertion that my self-employed secondary activity constitutes the "main business" — identified by source, date, and quoted text;
 - (b) the explanation of how that assertion is reconciled with the objective tax measures cited above (€73,427 salaried vs –€4,099 self-employed, Ausgeübter Beruf "Data Engineer," and the Finanzamt classification of the secondary activity as IT consulting registered alongside salaried employment).
-

IV. The employment-related aspect (Berufs-Rechtsschutz) independently raises questions that have not been addressed

My policy separately and expressly insures:

"Rechtsschutz für Ihren beruflichen Bereich im Zusammenhang mit einer nicht selbstständigen Tätigkeit."

GitHub Support ticket #4253477, opened on 7 April 2026, carries the title I assigned at the time of opening:

"Urgent: Account Flagged — Professional development blocked (stenon)"

In the body of the ticket I stated:

"My account has been flagged, which has disabled GitHub Copilot and halted all GitHub Actions. This is currently paralyzing my professional development work at stenon."

This contemporaneous, third-party-recorded statement establishes that the block directly impaired my ability to perform under my employment contract with stenon GmbH — a non-self-employed activity. To restore that ability I had to generate alternative SSH keys and set up a separate account configuration.

This aspect of the matter independently raises questions under the **Berufs-Rechtsschutz für nicht selbstständige Tätigkeit** module that are not affected by either the B.1.1. exclusion or any Kleinunternehmer-Rechtsschutz analysis. Neither rejection letter addresses the module.

I request a substantive response on the Berufs-Rechtsschutz aspect of the claim.

V. The private consumer-contract aspect has not been addressed

Independent of the foregoing, one element of the dispute is a purely private consumer-contract matter between me as a natural person (Verbraucher) and GitHub Inc. as a digital service provider. The GitHub account in question is not exclusively a commercial asset: it functions simultaneously as personal authentication infrastructure (SSH keys, identity), as private payment relationship (personal PayPal billing), and as the platform across which my private, salaried, and secondary self-employed activities all run.

Specific to the consumer-contract aspect:

- The GitHub Pro/Developer Plan was billed to my **personal PayPal account** (artiom.kovnatsky@gmail.com), as documented in the receipt of 9 April 2026 (Transaction ID 48F09434A3939605R, \$4.00 USD, billing period 9 April – 8 May 2026).
- During the early part of that billing period the account was under access restriction; the restriction was reversed only on 24 April 2026, per the cited GitHub Support response.
- Payment was therefore collected for a service simultaneously rendered inaccessible (ungerechtfertigte Bereicherung, § 812 BGB).

This element of the dispute concerns a personal consumer contract and falls within the **Privat-Rechtsschutz** module (P) of my policy. It is independent of any self-employed activity. Neither rejection letter addresses it.

I request a substantive response on the private consumer-contract aspect of the claim.

VI. Documented admission by the opposing party

GitHub Support, in its formal statement of 24 April 2026 in ticket #4253477, states:

"Sometimes our abuse detecting systems highlight accounts that need to be manually reviewed. We've cleared the restrictions from your account, so you have full access to GitHub again."

The opposing party has accordingly acknowledged that the restriction resulted from automated review systems and was later reversed without identifying any conduct on my part. This substantially distinguishes the matter from speculative or unfounded claims.

VII. Formal request

I respectfully request, within **14 days** of this letter (i.e. by **10 June 2026**), one of the following responses:

(1) A confirmation of legal cover (Deckungszusage), at minimum for the Privat-Rechtsschutz aspect (Section V) and the Berufs-Rechtsschutz aspect (Section IV) of the claim; **or**

(2) A written explanation specifying:

(a) the **exact ARB 2024 clause** that excludes the dispute from the **Kleinunternehmer-Rechtsschutz** module, given that this module is a named, purchased component of my policy and I have supplied all documentation that your information request of 21.05.2026 required;

(b) the **specific statements or documents on file** that support the assertion that my self-employed secondary activity constitutes the "main business," in light of the tax-documented €73,427 from salaried employment at stemon GmbH versus –€4,099 from self-employment;

(c) the position of ROLAND on the **Berufs-Rechtsschutz** aspect set out in Section IV;

(d) the position of ROLAND on the **private consumer-contract** aspect set out in Section V.

Absent a substantive response by 10 June 2026, I will submit the full record — including the change in stated reasoning between your letters of 27.04.2026 and 26.05.2026 in relation to the documentation supplied on 22.05.2026 at your request, the unaddressed Berufs- and Privat-Rechtsschutz aspects, and the appended chronology — to the **Versicherungsombudsmann e.V.** for independent review.

I remain open to a constructive resolution and look forward to your reply.

Yours sincerely,

Appendix A — Chronology

Date	Event
26.06.2019	Finanzamt Charlottenburg issues Steuernummer 13/394/02367 for the registered secondary activity " <i>Erbrg.v.Beratldg.f.Inform.gew.</i> " (IT consulting).
27.03.2025	BZSt issues Wirtschafts-Identifikationsnummer DE405667512 (§ 139c AO).
03.11.2025	Policy 1.29.1042136 (Komfort-Variante, ARB-Bausteine P, B, V1p) with named Kleinunternehmer-Rechtsschutz module in force.
06.02.2026	2025 tax declaration filed: €73,427 salaried (stenon GmbH) / –€4,099 self-employed (Data Science Consultant).
07.04.2026	GitHub block discovered; GitHub Support ticket #4253477 opened: " <i>Account Flagged — Professional development blocked (stenon).</i> "
09.04.2026	GitHub Pro billed to personal PayPal during access restriction (Transaction 48F09434A3939605R, \$4.00 USD).
23- 24.04.2026	GitHub Support acknowledges automated review and removes restriction.
27.04.2026	ROLAND first rejection: dispute does not fit listed contract/property categories. Same day: formal appeal filed with tax declaration and GitHub admission.
11.05.2026	Follow-up notice with deadline 15.05.2026.
21.05.2026	ROLAND information request: confirmation of Kleinunternehmer / § 19 UStG status.
22.05.2026	Response supplied with Finanzamt classification (26.06.2019) and Wirtschafts-Identifikationsnummer (27.03.2025).
26.05.2026	ROLAND second rejection, citing B.1.1. and asserting "main business is affected."
27.05.2026	This letter.

Enclosures (already on file with ROLAND, listed for reference):

1. Versicherungsschein 1.29.1042136 (Nachtrag vom 03.11.2025)
2. ROLAND rejection letter of 27.04.2026
3. ROLAND information request of 21.05.2026

4. My response of 22.05.2026 with Finanzamt classification (26.06.2019) and Wirtschafts-Identifikationsnummer DE405667512 (BZSt, 27.03.2025)
5. ROLAND rejection letter of 26.05.2026
6. 2025 tax declaration (Hauptvordruck, Anlage N, Anlage S, Anlage EÜR)
7. GitHub Pro receipt of 09.04.2026 (Transaction 48F09434A3939605R)
8. GitHub Support ticket #4253477 (opened 07.04.2026, closed 24.04.2026)